Sentence Modification in Wisconsin

A Companion Guide to the Cases and Procedures

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This is a companion to the Research Library article "Sentence Modification in Wisconsin: Law, Trends, and Practical Realities" (read it here). That article gives the overview; this guide walks through the procedures and the recent decisions in more detail.

Please read first. This article is general legal education. It is not legal advice, does not evaluate anyone's case, and does not create an attorney-client relationship. Paper Chasers LLC is not a law firm and does not represent anyone. Deadlines and procedures in this area are strict and fact-specific. Anyone considering a motion about a sentence should speak with a licensed Wisconsin attorney.

1. The short answer

Wisconsin judges keep a real but narrow power to change a sentence after it is imposed. The main path, called a *new factor* motion, asks whether something important to the sentence was unknown to the judge when the sentence was handed down. It is not a way to ask the judge to simply reconsider and be more lenient. Courts repeatedly draw the same line: genuinely new, highly relevant information can open the door; a fresh argument about the same facts the judge already weighed usually cannot.[1,2]

Even when a new factor exists, the judge still decides whether the sentence should change. Proving a new factor earns a second look, not a guaranteed reduction.[2]

2. Why courts are cautious

Two values pull against each other. One is fairness: a sentence built on a mistaken or missing premise should be correctable. The other is finality: victims, the public, and the courts depend on sentences meaning what they say. Wisconsin's answer is that a judge cannot change a sentence on mere "reflection" or second thoughts about facts already known, but can act when a qualifying new factor appears.[3]

3. The "new factor" test

The definition comes from the 1975 Wisconsin Supreme Court decision in *Rosado v. State*. A new factor is a fact or set of facts highly relevant to the sentence that the judge did not know at sentencing, either because it did not yet exist or because everyone involved unknowingly overlooked it. Information a defendant chose to hold back for strategic reasons does not become "new" when it is offered later.[1]

An often-missed detail: Rosado himself *lost* his new-factor argument. The Supreme Court still cut his sentence from fourteen years to seven, but on a different ground: the trial judge had improperly punished him for alleged out-of-state conduct rather than treating it only as evidence of character.[1]

Two steps

In *State v. Harbor* (2011), the Supreme Court restated the process as two separate questions:[2]

- **Is there a new factor?** The defendant must prove it by clear and convincing evidence. Appellate courts decide this as a question of law, without deferring to the trial judge.
- **Does it justify changing the sentence?** This is left to the circuit judge's discretion and is reviewed deferentially.

Harbor also removed an extra hurdle that some earlier cases had added, a requirement that the new factor "frustrate the purpose" of the original sentence. That language had come from *State v. Michels* and cases relying on it. Older decisions discussed below sometimes still use that phrase, so readers should keep *Harbor* in mind when reading them. Notably, Ms. Harbor herself still lost: her mental-health information was already known at sentencing.[2]

Getting a hearing is not winning

When deciding whether to hold a hearing, the court assumes the motion's specific, non-conclusory facts are true. A judge may deny a motion without a hearing if those facts would not legally qualify, or if the judge adequately explains why the sentence would stand anyway. A judge should not deny a hearing simply by disbelieving a properly supported allegation.[4,5]

4. Different routes, different rules

"Sentence modification" is used loosely. Several distinct procedures exist, each with its own deadlines, burdens, and remedies. Confusing them is one of the most common problems in this area.

Route	What it addresses	Key points
Motion under Wis. Stat. § 973.19[6]	A timely challenge to the original sentence	Generally within 90 days after sentencing for a defendant who has not requested transcripts; using it gives up certain appeal rights under Rule 809.30. A procedural election, not a request for leniency.
New-factor motion (court's inherent power)[7]	Information unknown at sentencing	Not bound by the 90-day deadline of § 973.19 (*Noll*). Still cannot be used to relitigate claims already decided.
"Unduly harsh" challenge[8]	Whether the original sentence was excessive when imposed	Looks only at what the judge knew at sentencing; later events do not count here (*Klubertanz*). A demanding "shocks public sentiment" standard.
Resentencing for inaccurate information[9,10]	A due-process violation at sentencing	Defendant must show inaccurate information and actual reliance by clear and convincing evidence; the State then must show harmless error (*Tiepelman*). Resentencing differs from modification (*Wood*).

Route	What it addresses	Key points
Sentence adjustment, Wis. Stat. § 973.195[11,12]	Truth-in-sentencing confinement terms	After 85% of confinement (Class C–E) or 75% (Class F–I); Class B excluded. Rehabilitation is an allowed ground. The district attorney may object; see below.
Geriatric / extraordinary health petition, Wis. Stat. § 302.113(9g)[13]	Age or serious health condition	Starts with the DOC program review committee; Class A and B felonies excluded. Health petitions require two physicians' affidavits. Total sentence length does not change.

A closer look at sentence adjustment (§ 973.195)

This statute matters because it expressly lists the inmate's conduct and progress in rehabilitation, education, and treatment among the permitted grounds, which the common-law new-factor doctrine does not accept. It also lists a later change in sentencing law that would have produced a shorter confinement term.[11]

The statute says the court "shall deny" a petition if the district attorney objects, and, for certain sexual-assault offenses, if the victim objects. In *State v. Stenklyft* (2005), a divided Supreme Court addressed the prosecutor-objection language. The combined effect of the opinions, as the official statute annotations describe it, is that the word "shall" is treated as directory, leaving the circuit court discretion to accept or reject a district attorney's objection. Readers should not assume an objection automatically ends a petition, nor that it carries no weight.[11,12]

5. Situations where courts have allowed relief

Help to law enforcement

In *State v. Doe* (2005), the Court of Appeals held that substantial, important assistance given after sentencing, there, information that helped solve a homicide, can be a new factor. Courts look at usefulness, reliability, the nature and extent of the help, risk to the defendant or family, and timeliness. *State v. Boyden* (2012) extended this to help given before sentencing whose results only became known later.[14,15]

Doe's later history shows the limit. In 2025, the Court of Appeals assumed a new factor existed but upheld the denial of a reduction, because the request did not adequately answer the original public-safety reasons for the sentence.[16]

A concrete mistake about how the sentence would work

In *State v. Norton* (2001), the sentencing record included an assurance that probation in another case would not be revoked; revocation then added consecutive time. In *State v. Armstrong* (2014), everyone believed the defendant had about two years of sentence credit when the correct figure was about eight months. Both were found to be new factors because the sentencing record showed the mistaken premise mattered.[17,18]

An undisclosed conflict in an evaluation the judge relied on

In *State v. Stafford* (2003), an evaluator whose report influenced the sentence had previously treated the victim, and that relationship was not disclosed. The Court of Appeals found a new factor and reversed the circuit court's refusal to grant relief.[19]

New treatment that undercuts a key sentencing premise

In *State v. Schueller* (2024), the sentencing judge had tied a long prison term to the belief that the defendant's PTSD could not be cured. A later expert described effective new treatments. The Court of Appeals held this could be a new factor, distinguished it from ordinary rehabilitation or a new opinion about old facts, and sent the case back. It did not order a reduction.[4]

New evidence about who did what

In *State v. Maldonado* (2025), the defendant, who was fifteen at the time of a 1994 homicide, presented a co-actor's later admissions that the co-actor, not Maldonado, was the shooter. The sentencing judge had heavily emphasized Maldonado's role as the shooter. The Court of Appeals held that, if proven, the admissions were a new factor and required an evidentiary hearing. It rejected a second theory, that a promise to waive future challenges was a new factor. The decision is an unpublished per curiam opinion.[5]

What happened afterward illustrates how these cases unfold beyond the appellate opinion. According to news reporting, the circuit court modified Maldonado's sentence in October 2025, making him eligible for parole earlier; at his first parole hearing in 2026, he received an 18-month deferral.[20]

6. Arguments that usually do not succeed

Rehabilitation alone

Wisconsin courts have long held that good conduct and progress in prison are not, by themselves, a new factor. *State v. Kluck* (1997) and *State v. Crochiere* (2004) kept that rule in place even after truth-in-sentencing eliminated parole for newer sentences. This is one of the most important practical limits on the doctrine, and it is why the separate statutory adjustment process in § 973.195 matters.[21,22]

A new report that mainly offers a different opinion

A later evaluation is not "new" just because of its date. *State v. Slagoski* (2001) rejected a psychiatric report covering issues already before the court. In *State v. Talley* (2025), a psychosexual evaluation did not establish the claimed overstatement of risk.[23,24]

General research on brain development

State v. Ninham (2011) and *State v. McDermott* (2012) held that research on adolescent and young-adult brain development, as presented in those cases, largely confirmed what courts already understood and was not a new factor. In *State v. Liebzeit* (2022), the original judge granted a modification based on that research, and the Court of Appeals reversed. The case shows that even the sentencing judge's support cannot substitute for a legally qualifying new factor.[25,26,27]

Later changes in penalties

A later legislative reduction in the maximum penalty is not itself a new factor for an earlier sentence (*State v. Hegwood*, 1983; *State v. Trujillo*, 2005). Whether a change in law helps depends on the change's own retroactivity terms and any statutory remedy, such as the change-in-law ground listed in § 973.195.[28,29,11]

Parole disappointment and later revocations

A general expectation of earlier release is not enough; the record must show the parole-related assumption actually shaped the sentence (*State v. Franklin*, 1989; *State v. Carroll*, 2012). In *State v. Guy* (2025), a circuit court changed a consecutive sentence to concurrent after a later revocation in another case; the Court of Appeals reversed and ordered the original sentence reinstated.[30,31,32]

Comparisons with other defendants, health, and other serious circumstances

In *State v. Raye* (2026), other defendants' sentences were not highly relevant to an individualized sentence. *State v. Ramuta* (2003) rejected known health problems and shortened life expectancy. *State v. Schilling* (2023) rejected a COVID-19 theory that was not tied to the sentence. In *State v. Sprenger* (2026), later research on antidepressant side effects did not address the conduct the sentencing judge repeatedly cited as the reason for the sentence.[33,34,35,36]

7. Recent appellate decisions at a glance

The table below lists recent Court of Appeals decisions discussed in this article. It is a hand-picked illustration of different theories, not a complete count of all cases, so it cannot be used to estimate odds.

Decision	Filed	Result on appeal
Schueller[4]	June 20, 2024	Denial reversed; case returned to circuit court. No reduction ordered.
Doe[16]	Jan. 24, 2025	Denial affirmed; new factor assumed but relief not justified.
Maldonado[5]	Mar. 13, 2025	Reversed in part; hearing required. Sentence later modified (Oct. 2025).[20]
Talley[24]	May 30, 2025	Denial affirmed; no new factor.
Guy[32]	Dec. 9, 2025	Granted modification reversed; original sentence reinstated.
Sprenger[36]	Aug. 2026	Denial affirmed; no new factor.
Raye[33]	Sept. 9, 2026	Denial affirmed.

Unpublished Wisconsin opinions are not binding. Under the appellate citation rule, unpublished per curiam opinions generally may not be cited as authority in Wisconsin courts, while certain judge-authored unpublished opinions issued on or after July 1, 2009, may be cited for persuasive value only. They appear here to show how courts apply the rules, not as authority.[37]

8. What the numbers can and cannot tell us

There is no reliable, current statewide success rate for new-factor motions. Appellate opinions mostly reflect contested denials; routine circuit-court grants that are never appealed may never appear in a searchable opinion. The best-known empirical study, a 1989 *Wisconsin Law Review* comment by Kate Kruse and Kim E. Patterson, examined a limited sample of trial-court motions and cautioned against treating its findings as predictions. It also predates truth-in-sentencing and *Harbor*.[38]

9. Questions courts tend to ask

The cases above return to the same handful of questions. Understanding them helps explain why some motions move forward and others do not. They describe how courts reason; they are not a checklist for any person's case.

- **What was actually unknown?** Was the information new, or did the judge already have it in some form?
- **Why was it missing?** Did it not exist yet, or did everyone overlook it, as opposed to a deliberate choice not to present it?
- **Did it matter to this sentence?** Courts look closely at the sentencing transcript to see what the judge actually relied on.
- **Is it more than rehabilitation, a new opinion, or general research?** Those categories usually fall short on their own.
- **What about the judge's other reasons?** Even a strong new factor may not change a sentence that rested on several grounds.
- **Is this the right procedure?** A new-factor motion, a § 973.19 motion, a harshness claim, an inaccurate-information claim, and a statutory petition all follow different rules.

10. Where to learn more

People with questions about a specific sentence should consult a licensed Wisconsin attorney. The Wisconsin State Public Defender handles postconviction and appellate cases for eligible people, and the Legal Assistance to Institutionalized Persons (LAIP) program at the University of Wisconsin Law School assists some people in Wisconsin institutions. Court records can be checked on CCAP (circuit courts) and WSCCA (appellate courts). Paper Chasers LLC can help with administrative tasks such as locating public records but does not provide legal advice.

Notes

1. *Rosado v. State*, 70 Wis. 2d 280, 288–91, 234 N.W.2d 69 (1975).
2. *State v. Harbor*, 2011 WI 28, ¶¶ 33–38, 40, 47–52, 57–63, 333 Wis. 2d 53, 797 N.W.2d 828 (withdrawing language from *State v. Michels*, 150 Wis. 2d 94, 441 N.W.2d 278 (Ct. App. 1989), and cases relying on it).
3. *State v. Grindemann*, 2002 WI App 106, ¶¶ 19–32, 255 Wis. 2d 632, 648 N.W.2d 507.
4. *State v. Schueller*, 2024 WI App 40, ¶¶ 26–49, 413 Wis. 2d 59, 10 N.W.3d 423.
5. *State v. Maldonado*, No. 2023AP2176-CR, slip op. ¶¶ 16–36 (Wis. Ct. App. Mar. 13, 2025) (unpublished per curiam opinion).
6. Wis. Stat. § 973.19 (2023–24).
7. *State v. Noll*, 2002 WI App 273, ¶¶ 5–14, 258 Wis. 2d 573, 653 N.W.2d 895.
8. *State v. Klubertanz*, 2006 WI App 71, ¶¶ 19–21, 291 Wis. 2d 751, 713 N.W.2d 116.
9. *State v. Tiepelman*, 2006 WI 66, ¶¶ 2–3, 26–31, 291 Wis. 2d 179, 717 N.W.2d 1.
10. *State v. Wood*, 2007 WI App 190, ¶¶ 4–17, 305 Wis. 2d 133, 738 N.W.2d 81.
11. Wis. Stat. § 973.195 (2023–24) & annot.
12. *State v. Stenklyft*, 2005 WI 71, 281 Wis. 2d 484, 697 N.W.2d 769 (fractured decision); *see* Wis. Stat. § 973.195 annot. (2023–24).

13. Wis. Stat. § 302.113(9g) (2023–24); Wis. Ct. Sys., Form CR-256, *Order Concerning Sentence Modification § 302.113(9g), Wis. Stats. (Geriatric/Extraordinary Health Condition)* (rev. Aug. 2011).
14. *State v. Doe*, 2005 WI App 68, ¶¶ 4–10, 280 Wis. 2d 731, 697 N.W.2d 101.
15. *State v. Boyden*, 2012 WI App 38, ¶¶ 7–18, 340 Wis. 2d 155, 814 N.W.2d 505.
16. *State v. Doe*, No. 2023AP1846-CR, slip op. ¶¶ 2, 11–31 (Wis. Ct. App. Jan. 24, 2025) (unpublished opinion).
17. *State v. Norton*, 2001 WI App 245, ¶¶ 3–13, 248 Wis. 2d 162, 635 N.W.2d 656.
18. *State v. Armstrong*, 2014 WI App 59, ¶¶ 12–18, 32–33, 354 Wis. 2d 111, 847 N.W.2d 860.
19. *State v. Stafford*, 2003 WI App 138, ¶¶ 11–19, 265 Wis. 2d 886, 667 N.W.2d 370.
20. *After 31 Years in Prison for a Crime Committed at Age 15, Wisconsin Man Seeks a Commutation*, Wis. Examiner (Aug. 20, 2026), https://wisconsinexaminer.com/2026/08/20/after-31-years-in-prison-for-a-crime-committed-at-age-15-wisconsin-man-seeks-a-commutation/.
21. *State v. Kluck*, 210 Wis. 2d 1, 7–9, 563 N.W.2d 468 (1997).
22. *State v. Crochiere*, 2004 WI 78, ¶¶ 18–27, 273 Wis. 2d 57, 681 N.W.2d 524.
23. *State v. Slagoski*, 2001 WI App 112, ¶¶ 9–11, 244 Wis. 2d 49, 629 N.W.2d 50.
24. *State v. Talley*, No. 2024AP830-CR, slip op. ¶¶ 12–43 (Wis. Ct. App. May 30, 2025) (unpublished opinion).
25. *State v. Ninham*, 2011 WI 33, ¶¶ 87–93, 333 Wis. 2d 335, 797 N.W.2d 451.
26. *State v. McDermott*, 2012 WI App 14, ¶¶ 9–22, 339 Wis. 2d 316, 810 N.W.2d 237.
27. *State v. Liebzeit*, No. 2021AP9-CR, slip op. ¶¶ 25–46 (Wis. Ct. App. Aug. 30, 2022) (unpublished opinion).
28. *State v. Hegwood*, 113 Wis. 2d 544, 546–48, 335 N.W.2d 399 (1983).
29. *State v. Trujillo*, 2005 WI 45, ¶¶ 11–24, 279 Wis. 2d 712, 694 N.W.2d 933.
30. *State v. Franklin*, 148 Wis. 2d 1, 8–16, 434 N.W.2d 609 (1989).
31. *State v. Carroll*, 2012 WI App 83, ¶¶ 9–12, 343 Wis. 2d 509, 819 N.W.2d 343.
32. *State v. Guy*, No. 2023AP650-CR, slip op. ¶¶ 15–30 (Wis. Ct. App. Dec. 9, 2025) (unpublished opinion).
33. *State v. Raye*, No. 2025AP1440, slip op. ¶¶ 12–19 (Wis. Ct. App. Sept. 9, 2026) (unpublished opinion).
34. *State v. Ramuta*, 2003 WI App 80, ¶¶ 17–21, 261 Wis. 2d 784, 661 N.W.2d 483.
35. *State v. Schilling*, No. 2022AP404-CR, slip op. ¶¶ 5–21 (Wis. Ct. App. Aug. 10, 2023) (unpublished opinion).
36. *State v. Sprenger*, No. 2025AP386-CR, slip op. ¶¶ 7–13 (Wis. Ct. App. Aug. 6, 2026) (unpublished opinion).
37. Wis. Stat. § (Rule) 809.23(3) (2023–24).
38. Kate Kruse & Kim E. Patterson, Comment, *Wisconsin Sentence Modification: A View from the Trial Court*, 1989 Wis. L. Rev. 441.

Opinions decided before *Harbor* (2011) may describe a "frustration of purpose" requirement that *Harbor* withdrew; they are cited here only for their surviving points. This article was prepared from public sources and is not a substitute for a full citator check.

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